

COOLEY LLP
MICHAEL ATTANASIO (151529)
(mattanasio@cooley.com)
BARRETT J. ANDERSON (318539)
(banderson@cooley.com)
JASMIN F. MOTLAGH (311639)
(jmotlagh@cooley.com)
DYLAN K. SCOTT (332796)
(dscott@cooley.com)
RACHAEL M. HELLER (335636)
(rheller@cooley.com)
10265 Science Center Drive
San Diego, CA 92121
Telephone: (858) 550-6000
Facsimile: (858) 550-6420

*Attorneys for Plaintiff and Counter-Defendant
ChromaDex, Inc.*

**UNITED STATES DISTRICT COURT
CENTRAL DISTRICT OF CALIFORNIA
(SOUTHERN DIVISION)**

ChromaDex, Inc.,

Plaintiff,

v.

Elysium Health, Inc., and Mark Morris

Defendants.

Elysium Health, Inc.,

Counterclaimant,

v.

ChromaDex, Inc.,

Counter-Defendant.

Case No. 8:16-cv-2277-CJC (DFMx)

**JOINT STATUS REPORT AND
STIPULATION REGARDING STAY OF
PROCEEDINGS**

Judge: Hon. Cormac J. Carney
Courtroom: 9B

1 Pursuant to the Court's September 13, 2022, minute order, (Dkt. 592),
2 Plaintiff and Counter-Defendant ChromaDex, Inc., Defendant and Counterclaimant
3 Elysium Health, Inc., and Defendant Mark Morris (collectively, the "Parties"), by and
4 through their respective counsel, hereby jointly state, stipulate, and agree as follows:

5 1. Elysium alleged a counterclaim seeking a declaratory judgment of patent
6 misuse and a related counterclaim for unjust enrichment in this action, which the Court
7 bifurcated from the other claims and counterclaims (the "Jury Claims") on
8 August 18, 2021. (Dkt. 508.)

9 2. Elysium's patent-misuse counterclaim involves patents that are the subject
10 of a patent-infringement action between ChromaDex and Elysium, which is now on
11 appeal to the U.S. Court of Appeals for the Federal Circuit in a case captioned
12 *ChromaDex, Inc. v. Elysium Health, Inc.*, No. 2022-1116 (the "Federal Circuit
13 Appeal"). The parties have fully briefed the Federal Circuit Appeal and are awaiting
14 the appellate court's order setting a date for oral argument.

15 3. On December 27, 2021, the Court stayed adjudication of Elysium's patent-
16 misuse counterclaim pending resolution of the Federal Circuit Appeal and dismissed
17 Elysium's related unjust-enrichment counterclaim without prejudice. (Dkt. 579.)

18 4. The Parties tried the Jury Claims in this Court in September 2021. The
19 jury returned a verdict on September 27, 2021. (Dkts. 570, 573.)

20 5. ChromaDex and Elysium were parties to an action that involved issues that
21 ChromaDex contends are related to the Jury Claims and that is now on appeal to the
22 U.S. Court of Appeals for the Second Circuit in a case captioned *In re Elysium-*
23 *ChromaDex Litigation*, No. 22-1059 (the "Second Circuit Appeal"). Elysium submitted
24 its opening appellant's brief in the Second Circuit Appeal on August 24, 2022, and
25 ChromaDex's opposition brief is due November 22, 2022.

26 6. On August 22, 2022, ChromaDex filed a motion to enter final judgment on
27 the Jury Claims under Federal Rule of Civil Procedure 54(b). (Dkt. 588, *et seq.*) The
28

1 Court denied the motion on September 13. (Dkt. 591.) ChromaDex respectfully
2 disagrees with the Court's decision and reserves its appellate rights.

3 7. On September 13, 2022, the Court instructed the Parties to submit "a joint
4 report describing how this case will proceed." (Dkt. 592.)

5 8. On September 23, 2022, pursuant to the Court's order, counsel for the
6 Parties met and conferred by telephone.

7 Accordingly, the Parties **HEREBY STIPULATE AND AGREE:**

8 1. Given not all of the Parties' claims and counterclaims in this case have
9 been finally resolved, including Elysium's patent-misuse counterclaim that is stayed
10 pending the resolution of the Federal Circuit Appeal, no further proceedings in this
11 Court are appropriate or necessary until the Federal Circuit Appeal is finally resolved.
12 The Parties therefore request that the Court stay all proceedings in this action pending
13 the outcome of the Federal Circuit Appeal.

14 2. The Parties shall file a joint status report with the Court within 30 days of
15 the issuance of the Federal Circuit's mandate in, or other disposition of, the Federal
16 Circuit Appeal. The joint status report shall describe how the case will proceed or
17 request a status conference with the Court for the same purpose.
18
19
20
21
22
23
24
25
26
27
28

1 Dated: September 28, 2022

COOLEY LLP
MICHAEL A. ATTANASIO (151529)
BARRETT J. ANDERSON (318539)
JASMIN F. MOTLAGH (311639)
DYLAN K. SCOTT (332796)
RACHAEL M. HELLER (335636)

2
3
4
5
6 /s/ Michael A. Attanasio

Michael A. Attanasio (151529)

7 *Attorneys for Plaintiff and Counter-*
8 *Defendant ChromaDex, Inc.*

9 *The filer, Michael A. Attanasio, attests*
10 *that the other signatories listed, on whose*
11 *behalf the filing also is submitted, concur*
12 *in the filing's content and have authorized*
13 *the filing.*

14 Dated: September 28, 2022

COHEN WILLIAMS LLP
MARC S. WILLIAMS (198913)
REUVEN L. COHEN (231915)
BRITTANY L. LANE (323440)

15
16 /s/ Marc S. Williams

Marc S. Williams (198913)

17 *Attorneys for Defendant and Counter-*
18 *Claimant Elysium Health, Inc. and*
19 *Defendant Mark Morris*